



U.S. Department
of Transportation

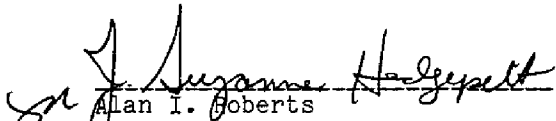
**Research and
Special Programs
Administration**

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9235 (EXTENSION)
ORIGINAL January 17, 1985

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9235 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to March 31, 1994. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

MAY 07 1992

(DATE)

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

Bennett Industries, Inc.
Peotone, IL

March 11, 1992



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9235

1. Bennett Industries, Peotone, Illinois, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to manufacture, mark, and sell the packaging described in paragraph 7 below for use in the transportation of the various hazardous materials described in paragraph 3 below in commerce subject to the requirements specified herein. This exemption authorizes the manufacture, marking and sale of non-DOT specification steel drums of 24-gauge thickness and six-gallon capacity, to be used in place of 24-gauge, five-gallon capacity, DOT-17E steel drums, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Bennett Industries' application dated March 6, 1984, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Hazardous materials presently authorized to be packaged in 24-gauge, five-gallon capacity, DOT-17E steel drums.

4. PROPER SHIPPING NAME (49 CFR 172.101). As specified in 49 CFR 172.101; or the specific chemical name or generic commodity description, as appropriate.

5. REGULATION AFFECTED. 49 CFR 178.116-6

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel.

7. SAFETY CONTROL MEASURES. Packaging prescribed is non-DOT specification steel drums of 24-gauge thickness and six-gallon capacity, complying with DOT specification 17E except for thickness of head and body sheets; (i.e., 49 CFR 178.116-6 requires that a drum of six-gallon capacity is to be manufactured of steel of 22-gauge minimum thickness or 0.0269 to 0.0299 inches.) Dimensions and construction of proposed drums are as shown in Drawing, dated February 27, 1984, included in application.

8. SPECIAL PROVISIONS.

a. Shippers may use the packaging(s) covered by this exemption pursuant to 49 CFR 173.22a.

b. A copy of this exemption must be carried aboard each vessel used to transport packages covered by this exemption.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Regulation as soon as practicable.

10. EXPIRATION DATE. August 1, 1986.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

JAN 17 1986

(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation, Materials Transportation Bureau, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: USGC, FHWA, FRA.